

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 836 of 2026

Muhammad Ahmad Tariq
vs
Judge Family Court, D.G. Khan etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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22.01.2026. Mr. Nafees Ahmad Ansari, Advocate for petitioner. Mr. Musleh ud Din Khan and Malik Muhammad Bakhsh Khaki, Assistant Advocates General Punjab, Muhammad Azhar Khan Mughal, Ahmad Hassan Khan Khichi and Dr. Muhammad Azeem Raja, Advocates. Rana Ghulam Hussain, Assistant Attorney General for Pakistan.

The petitioner is aggrieved of dismissal of his application for deletion of prayer for recovery of dowry articles or rejection of plaint to that extent in a family suit filed by respondent No.2 by claiming that in view of Rule 6 of the West Pakistan Family Courts Rules, 1965 (“**Rules**”), the suit for recovery of dowry articles could not have been filed before Family Court, D.G. Khan as the parties were neither married there nor ever resided in D.G. Khan as husband and wife, therefore, the court lacked jurisdiction to entertain the same.

2. Perusal of record shows that respondent No.2 (“Respondent”) filed a composite family suit for recovery of maintenance allowance, dower and dowry articles against the petitioner, which was contested by him, in which the petitioner filed an application for deletion of prayer to the extent of dowry articles by claiming that the court lacked jurisdiction to entertain the said claim. However, the court through impugned order dated 21.11.2025 dismissed said application on the ground that in a composite suit, plaint to the extent of recovery of dowry articles only could not be rejected. The operative portion of the said order is reproduced below:

“Perusal of plaint shows that plaintiff instituted suit for recovery of maintenance allowance, recovery of dower and recovery of dowry articles jointly and in this event suit for recovery of dowry articles was rightly instituted at Dera Ghazi Khan and plaint for suit to the extent of recovery of dowry articles cannot be rejected. Hence, application for rejection of plaint to the extent of suit for recovery of dowry articles, filed by defendant No. 2, is dismissed.”

3. The Rule 6 of the Rules relied upon by the petitioner in support of his claim is reproduced below for reference:

“6. The Court which shall have jurisdiction to try a suit will be that within the local limits of which—

- (a) The cause of action wholly or in part has arisen, or*
- (b) Where the parties reside or last resided together:*

Provided that in suits for dissolution of marriage, or dower, the Court within the local limits of which the wife ordinarily resides shall also have jurisdiction.”

4. The claim of the petitioner is that as neither the parties resided in Dera Ghazi Khan nor cause of action wholly or in part had arisen there, therefore, Family Court at Dera Ghazi Khan did not have the jurisdiction to try the suit to the extent of dowry articles.

5. The perusal of the Rule 6 (supra) shows that although a family suit could be filed in a court, within the local limits of which the cause of action had wholly or in part arisen and also where the parties reside or last resided together, however an exception has been made for suit for dissolution of marriage or dower, which could be filed in a court at a place where the wife ordinarily resides. Of course this exception has not been made for cases related to dowry articles and an ordinary suit to the

extent of recovery of dowry articles ought to be filed in a place where the cause of action had wholly or in part arisen or the parties reside or last resided together. However there is no absolute bar against filing of suit at some other place, i.e. where wife ordinarily resided for the reason that the Family Courts Act, 1964 provided permission to file a composite suit by joining various relief admissible to a party through the family suit. Reliance may be placed on Section 7 of the Family Court Act, 1964, reproduced below:

“7. Institution of suits.— (1) Every suit before a Family Court shall be instituted by the presentation of a plaint or in such other manner and in such Court as may be prescribed.

(2) The plaint shall contain all material facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the plaint, the names and addresses of the witnesses and a brief summary of the facts to which they would depose: Provided that a plaint for dissolution of marriage may contain all claims relating to dowry, maintenance, dower, personal property and belongings of wife, custody of children and visitation rights of parents to meet their children.”

6. The perusal of the proviso attached to Sub-section (2) of Section 7 makes it clear the parties are entitled to join various reliefs available to them in a composite family suit. However, it is claimed by the petitioner that the remaining reliefs can only be combined with a suit for dissolution of marriage and as dissolution of marriage was not claimed by the respondent, therefore, the composite suit by joining various reliefs could not be filed.

7. I am not inclined to agree with the said ground raised by the petitioner for the reason that the afore-referred proviso is beneficial and permissive in nature and cannot be treated as restrictive in nature to curtail application of law for the reason that same does not bar joining of remaining reliefs together if dissolution of marriage is not prayed for. The purpose of permitting the parties to join the various causes of matrimonial disputes in one suit is the advancement of the cause of convenience of the parties and the Courts, by avoiding multiplicity of the proceedings. Hence, it will simply be unreasonable and against the logic to say that causes of matrimonial disputes can be joined together only with a suit for dissolution of marriage, but in other matters, the parties shall have to face the rigors of multiplicity of litigation. In case, the joinder of the claims is not permitted without a suit for dissolution of marriage, it will render the whole legislation on this point, as useless, which can neither be the intention of law nor a proper and reasonable interpretation. This would rather frustrate the very purpose of the provision, instead of advancing its cause. Reliance is placed on cases titled **Muhammad Kaleem Asif versus Additional District Judge** (PLD 2009 Lahore 484) and **Muhammad Bakhsh Masood versus Mst. Aysha Mai and others** (2009 CLC 905).

8. In view of the above, the respondent was permitted by law to file a composite family suit by joining various reliefs available to her and merely by not including the relief of dissolution of marriage in her plaint, the suit would not be rendered as not maintainable. Furthermore, as per Rule 6 (supra) the petitioner could file a suit for dissolution of marriage or dower at place where the wife ordinarily resides, therefore she could also file a suit by joining other reliefs with the said suit at the same place which also includes joining of relief for maintenance and recovery of dowry articles. Hence, by joining the relief

for recovery of dowry articles neither her suit could be declared to have been incompetently filed nor her plaint to that extent could be rejected or the relief could be deleted. If the same was allowed, then petitioner may also object to her filing a suit for maintenance along with other claims in the suit, which is not permissible under the law.

9. Moreover, dismissal of suit by piecemeal rejecting of plaint is not permissible under the law and the suit is required to be decided as a whole, where the court may or may not grant relief or partially allow or reject the claim in suit, therefore, despite the fact that under Rule 6 of the Rules the matter relating to recovery of dowry articles, if filed alone, was to be entertained by a court where cause of action partially or wholly had arisen or the parties had resided together as husband and wife, yet the same cannot be rejected summarily by piecemeal rejection of plaint.

10. In view of the above the impugned order, refusing to reject the plaint to the extent of recovery of dowry articles or deleting the said claim, does not suffer from illegality or jurisdictional defect for this Court to warrant interference.

11. For what has been discussed above, this petition stands ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *

APPROVED FOR REPORTING